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THE BLACK PANTHER

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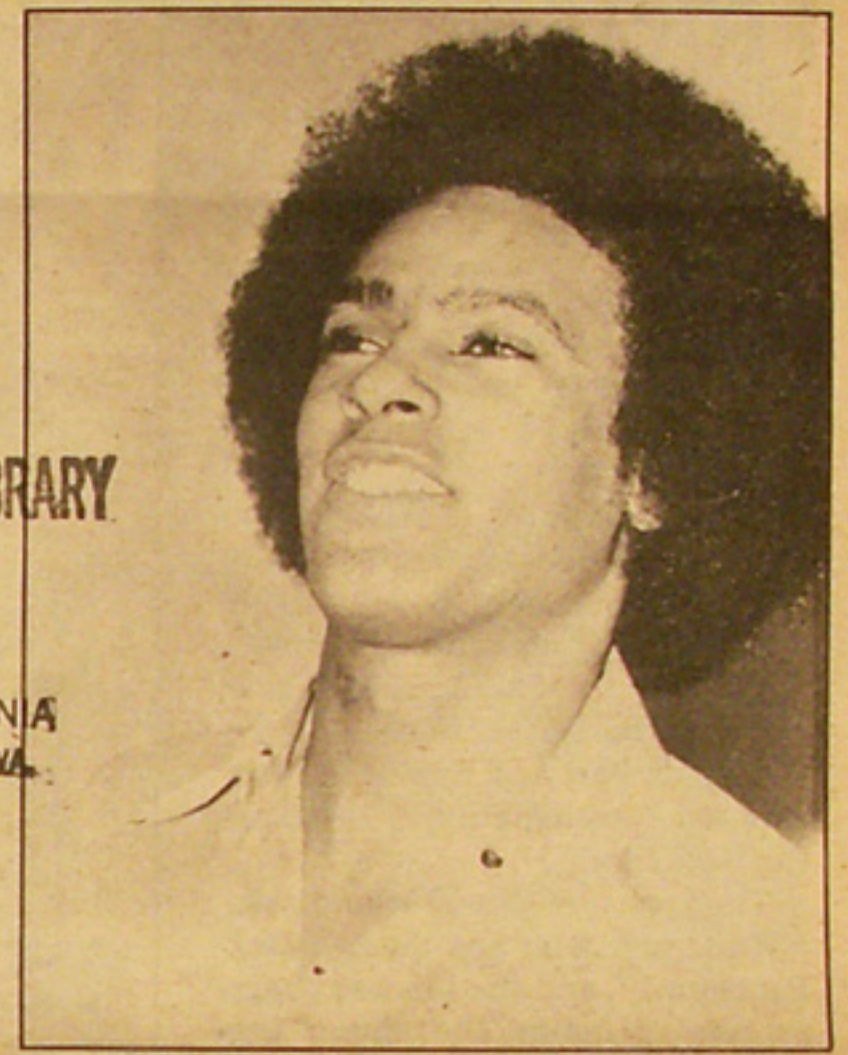


Subpoenas Quashed, Appeal Filed JUDGE AGAIN DENIES HUEY P. NEWTON ACCESS TO F.B.I., C.I.A. FILES

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Name, Address and Telephone No. of Attorney(s) _____
Space Below for Use of Court Clerk Only _____

LAW OFFICES OF SHELDON OTIS
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Attorney(s) for HUEY P. NEWTON

MUNICIPAL COURT FOR THE OAKLAND PIEDMONT JUDICIAL DISTRICT
COUNTY OF ALAMEDA, STATE OF CALIFORNIA

PEOPLE OF THE STATE OF CALIFORNIA,
Plaintiff(s) vs.
HUEY P. NEWTON
Defendant(s)

CASE NUMBER
64624A

SUBPENA DUCES TECUM
CRIMINAL

Charles McKinnon, Special Agent in Charge of the Federal Bureau of Investigation, San Francisco Division, or his authorized agent:

THE PEOPLE OF THE STATE OF CALIFORNIA, to you are ordered to appear in this court, located at 600 Washington St., Oakland, California on Sep. 8, 1977 at 1:30 p.m. Department 6 to testify as a witness in this action.

You must appear at that time unless you make a special agreement to appear at another time, etc. with:
DAVID McNEIL MORSE at (415) 885-5912

You are also ordered to bring with you the books, papers and documents or other things in your possession or under your control, described in the attached declaration or affidavit as follows: (Type or Print)

(Oakland, Calif.) - Attorneys for Black Panther Party Founder and President Huey P. Newton filed a motion in Alameda County Superior Court last week seeking to overturn a municipal court order denying the recently returned Black community leader access to FBI, CIA and other federal government files considered essential to his defense in the frame-up criminal proceedings here.

The petition to Superior Court comes in the face of repeated refusals by Municipal Court Judge Courtland Arne to order the government to hand over the files, detailing the 11-year-long federal police war against the Black Panther Party, despite their clear and obvious bearing on Huey's case.

Meanwhile, in Oakland-Piedmont Municipal Court, attorney Sheldon Otis, Huey's chief counsel in the current proceedings, succeeded in obtaining a continuance of the preliminary hearing from its scheduled October 14 date to Monday, October 24.

At a brief, 30-minute hearing last Tuesday, October 11, Otis, his voice raised, visibly angered, argued that Assistant District Attorney Tom Orloff was "playing games" with the judge's previous order that the prosecution turn over the last known addresses of all witnesses they intended to call, thus hampering his preparations for the preliminary hearing.

"I think the public would insist that we not engage in 'assembly-line justice,'" Otis said in CONTINUED ON PAGE 6

Subpoena demanding San Francisco FBI head Charles McKinnon to hand over files disclosing frame-up of BPP President HUEY NEWTON. Attorneys for the BPP founder recently filed a motion seeking to overturn a Municipal Court order denying access to FBI, CIA and other federal government files.

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